

Therefore, summary adjudication of the sixth cause of action of the second amended cross complaint is denied.

Summary Judgment of the First Amended Complaint for Trespass

Plaintiff moves for summary judgment of its own first amended complaint alleging a single cause of action for trespass against defendant CVCSF. In support of the motion, GPP sets forth as undisputed that neither the City nor CVCSF have an easement for parking over the parking tract. (UMF No. 4.) CVCSF disputes the fact directly, asserting as additional material facts that it has satisfied the elements to establish a prescriptive easement. (AUMF Nos. 2-7.) Whether CVCSF has established the elements of an easement by prescription is a question of fact. (*Warsaw v. Chicago Metallic Ceilings, Inc.* (1984) 35 Cal.3d 564, 570.)

As there is a dispute as to whether CVCSF has an easement for parking, the motion for summary judgment is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/12/2026.
(Judge's initials) (Date)

(34)

Tentative Ruling

Re: ***City of Fresno v. County of Fresno, et al.***
Superior Court Case No. 24CECG01199

Hearing Date: June 16, 2026 (Dept. 503)

Motion: by Respondent for an Order Requiring Petitioner to Pay Costs
Incurred in Preparing the Administrative Record

Tentative Ruling:

To grant. Petitioner City of Fresno is ordered to pay Respondent County of Fresno \$35,490.54 in costs incurred to prepare the record of proceedings within 15 days of the clerk's service of the minute order. (Code Civ. Proc. §1094.5, subd. (a); Pub. Resources Code, §21167.6, subd. (b)(1)(A).) Respondent is under no obligation to serve the certified record to Petitioner until payment is received.

Explanation:

Respondents County of Fresno and Board of Supervisors of County of Fresno ("County") move for an order requiring Petitioner City of Fresno ("City") to pay \$35,490.54 in costs the County incurred to prepare the record of proceeding for petitioner's petition for writ of mandate.

Code of Civil Procedure section 1094.5 regarding review of administrative orders provides in pertinent part, "[e]xcept where otherwise prescribed by statute, the cost of preparing the record shall be borne by the petitioner." (Code Civ. Proc., § 1094.5, subd. (a).)

California Public Resources Code section 21167.6 sets out the procedure of preparation of the record of proceedings in CEQA matters and states, "[t]he parties shall pay any reasonable costs or fees imposed for the preparation of the record of proceedings in conformance with any law or rule of court." (Pub. Resources Code, § 21167.6, subd. (b)(1)(A).) However, under this statute a petitioner may elect to prepare the record subject to certification of its accuracy by the public agency and should the agency deny petitioner's request, "the public agency or the real party in interest shall bear the costs of preparation and certification of the record of proceedings" (*Id.*, § 21167.6, subds. (b)(2) and (b)(3).)

In the case at bench, the City requested the County prepare the record and the County submitted an invoice to the City in the amount of \$35,490.54 pursuant to Public Resources Code section 21167.6(b)(1)(A). (Owsowitz Decl., ¶¶ 2, 10, Ex. 1, 7.) The City has not paid for the preparation of the record and the County has not provided a copy of the record to the City. (*Id.*, ¶¶ 14-15.) Meet and confer efforts to resolve the issue of payment have been unsuccessful.

The City argues the County must bear the cost of preparing the record pursuant to its denial of petitioner Central Valley Partnership's election to prepare the record regarding the same February 20, 2024 General Plan update at issue in the City's petition pursuant to Public Resources Code section 21167.6, subdivision (b)(3). The City submits evidence that the two challenges to the General Plan update were filed as separate actions but characterizes them as "parallel petitions" requiring the preparation of largely identical administrative records. (Jarvis Decl., ¶¶ 2, 4.) The City provides no authority for its position that because the County is required to bear the cost of the preparation of the record pursuant to subdivision (b)(3) in a separately filed action it must also bear the cost in a another action requiring the preparation of the administrative record of the same challenged decision.

There is no suggestion within the language of subdivision (b)(3) or within Public Resources Code section 21167.6 generally that related cases requiring preparation of the same or similar administrative records will have any bearing on what party will bear the cost of preparation. The court declines to find there is any implication that another petitioner's election to prepare the record pursuant to subdivision (b)(2) and a the agency's denial of the request pursuant to subdivision (b)(3) can be invoked by a petitioner in a separately filed action against the same public agency challenging the same decision to force the agency to bear the cost in both actions.

The City elected to have the County prepare the administrative record pursuant to Public Resources Code section 21167.6, subdivision (b)(1)(A). (Jarvis Decl., ¶ 3, Ex. 1.) As such, the City "shall pay any reasonable costs or fees imposed for the preparation of the record of proceedings" consistent with Code of Civil Procedure section 1094.5, subdivision (a).

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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